

PARLIMENT CEYLUN

3rd Session 1967-6

Colombo District (Low-lying Areas) Reclamation and Development Board Act, No. 15 of 1968

Date of Assent: May 17, 1968

Printed on the Orders of Government

Printed at the Government Press, Ceylon.

To be purchased at the Government Publications Bureau, COLOMBO.

Annual Subscription: Rs. 30 (Local), Rs. 40 (Foreign), payable to the Superintendent, Government Publications Bureau, P. O. Box 500, Colombo 1, before 20th December each year in respect of the year following. Late subscriptions will be accepted on the condition that issues issued before the date of payment will not be supplied.

Price : 60 cents. Postage : 10 cents.

Colombo District (Low-lying Areas) Reclamation and Development Board Act, No. 15 of 1968

L. D. 48/60.

AN ACT TO PROVIDE FOR THE ESTABLISHMENT OF A BOARD TO BE KNOWN AS THE COLOMBO DISTRICT (LOW-LYING AREAS) RECLAMATION AND DEVELOPMENT BOARD FOR THE RECLAMATION AND DEVELOPMENT OF SUCH AREAS AS MAY BE DECLARED BY ORDER OF THE MINISTER UNDER THAT ACT AS RECLAMATION AND DEVELOPMENT AREAS SO THAT SUCH AREAS MAY BE RENDERED SUITABLE FOR BUILDING PURPOSES, AND FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO.

Date of Assent : May 17, 1968.

BE it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Senate and the House of Representatives of Ceylon in this present Parliament assembled, and by the authority of the same, as follows:—

This Act may be cited as the Colombo District (Low-lying Areas) Reclamation and Development Board Act, No. 15 of 1968, and shall come into operation on such date as the Minister may, by Order published in the Gazette, appoint.

PART I.

POWER OF MINISTER TO DECLARE RECLAMATION AND DEVELOPMENT AREAS.

2. (1) Where the Minister is satisfied that any area of land situated within the jurisdiction of any local authority specified in the First Schedule to this Act is a low-lying, marshy, waste or swampy area, he shall after consultation with the Minister of Local Government and the local authority or authorities within which such area of land is situate, by Order published in the Gazette, declare such area to be a Reclamation and Development Area for the purposes of this Act.

(2) An Order declaring a Reclamation and Development Area under sub-section (1) shall define the area by setting out the metes and bounds of the land or lands comprised in the Area.

(3) (a) Upon the making of an Order under sub-section (1), the Minister shall cause to be published in the Gazette a notice specifying a date on or before which claims for compensation may be made to the Board by any person interested in any land comprised in the Reclamation and Development Area.

(b) The notice referred to in paragraph (a) shall also be published in such other manner as may be prescribed.

(4) The Board shall receive and inquire into all claims made under paragraph (a) of sub-section (3) and shall determine all questions with regard to the persons entitled to compensation and the amounts of compensation payable to them.

(5) Where the Minister is satisfied that any land comprised in a Reclamation and Development Area is required for reclamation and development by the Board, he may, by Order published in the Gazette, authorize the Board to acquire such land.

(6) Where any land is authorized to be acquired by the Board under sub-section (5), such land shall be deemed to be required for a public purpose and the Board may acquire such land in accordance with the provisions of the Land Acquisition Act, and that Act shall, subject to the provisions of this Act, apply in relation to such acquisition.

(7) (a) For the purpose of assessing compensation for any land acquired under this Act, the market value of such land shall, notwithstanding anything to the contrary in the Land Acquisition Act, be deemed to be the market value which that land would have had at the date of commencement of this Act if it then was in the same condition as it is at the time of acquisition.

PART II.

ESTABLISHMENT OF THE COLOMBO DISTRICT (LOW-LYING AREAS) RECLAMATION AND DEVELOPMENT BOARD.

4. (1) A Board to be called the Colombo District (Low-lying Areas) Reclamation and Development Board is hereby established.

(2) The Board shall be a body corporate having perpetual succession and a common seal and may

sue and be sued in the name assigned to it by sub-section (1).

5. (1) The Board shall consist of the following members:—

(a) three *ex officio* members, namely,— (i) the Director of Irrigation, (ii) the Director of Town and Country Planning, and (iii) the Commissioner of National Housing; and

(b) four other members appointed by the Minister, one of whom at least shall be a qualified Civil Engineer.

(2) A person shall be disqualified for appointment by the Minister as a member of the Board or for continuing as a member so appointed—

(i) if he is a Senator or Member of Parliament, or

(ii) if he, directly or indirectly, has any interest in a subsisting contract with, or in any work being done for, the Board, except as a shareholder (other than a director) in an incorporated company, or

(iii) if he has any such financial or other interest as is likely to affect prejudicially the discharge by him of his duties as a member of the Board.

(3) If a member of the Board other than an *ex officio* member is temporarily unable to function as such member, the Minister may appoint any person to act as a member of the Board.
